

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
KAVON DURDIN,

Plaintiff,

- against -

THE CITY OF NEW YORK, P.O. NELSON,
P.O. PATRICK, P.O. BELLARDIO,

Defendants.

Index No. 2547/15

Plaintiff designates
Kings County as the
place of trial.

The basis of the
venue is the
location of
occurrence.

S U M M O N S

Plaintiff resides at
121 Nostrand Avenue (3-C)
Brooklyn, NY 11206

-----X
County of Kings

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
February 27, 2015

SCHMELKIN ASSOCIATES, P.
Attorneys for Plaintiff
KAVON DURDIN
Office & P.O. Address
11 Park Place, 10th Floor
New York, New York 10007
(212) 227-8865

2015 MAR-2 AM 9:25

KINGS COUNTY CLERK
FILED

The City of New York, 100 Church Street, New York, NY 10007
P.O. Nelson, c/o 84th Pct, 301 Gold Street, Brooklyn, NY
P.O. Patrick, c/o 84th Pct, 301 Gold Street, Brooklyn, NY
P.O. Bellardio, c/o 84th Pct., 301 Gold Street, Brooklyn, NY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.
KAVON DURDIN,

Plaintiff,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, P.O. NELSON,
P.O. PATRICK and P.O. BELLARDIO,

Defendants.

-----X

Plaintiff, complaining of the defendants, by his
attorneys, SCHMELKIN ASSOCIATES, P.C., hereby sets forth and
alleges, upon information and belief, as follows:

PRELIMINARY STATEMENT

1. That, at all times hereinafter mentioned, and on
December 9, 2013, the plaintiff, **KAVON DURDIN**, was and still
is a resident of the County of Kings, City and State of New
York.

2. That, at all times hereinafter mentioned, and on
December 9, 2013, the defendant, **THE CITY OF NEW YORK**,
(hereinafter referred to as "**THE CITY**") was and still is a domestic
municipal corporation, duly organized and existing under and by
virtue of the laws of the State of New York.

3. That, at all times hereinafter mentioned, and on December 9, 2013, defendant, **P.O. NELSON**, (hereinafter referred to as "**NELSON**"), was and still is a resident of the City and State of New York.

4. That, at all times hereinafter mentioned, and on December 9, 2013, defendant, **P.O. PATRICK**, (hereinafter referred to as "**PATRICK**"), was and still is a resident of the City and State of New York.

5. That, at all times hereinafter mentioned, and on December 9, 2013, defendant, **P.O. BELLARDIO**, (hereinafter referred to as "**BELLARDIO**"), was and still is a resident of the City and State of New York.

6. That, the plaintiff, **KAVON DURDIN**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim was served on February 25, 2014, respectively, within ninety (90) days of the date that the within cause of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **KAVON DURDIN**, testified at an oral examination pursuant to the General Municipal Law on February 24, 2015; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

7. That on December 9, 2013, the plaintiff, **KAVON DURDIN** was in front of his school known as the "Science Skills Center High School", located at 49 Flatbush Avenue Extension, Brooklyn, in the County of Kings, City and State of New York.

8. That during the lunchtime hour, the plaintiff, **KAVON DURDIN** went to a store around the corner to get something to eat for his lunch.

9. That the plaintiff **KAVON DURDIN** then saw a van, while he was with two of his schoolmates.

10. That the aforementioned van contained police officers, and/or agents, servants and/or employees of the defendant and/or defendants.

11. That the aforementioned police officers, and/or agents, servants and/or employees of the defendant and/or defendants attempted to grab the plaintiff, **KAVON DURDIN**.

12. That the aforementioned agents, servants, and/or employees of the defendant and/or defendants had followed the plaintiff, **KAVON DURDIN** back to his school in the vicinity of the main office.

13. That the aforementioned agents, servants, and/or employees of the defendant and/or defendants had cursed at the plaintiff, **KAVON DURDIN** and had thrown him to the ground and had sprayed him with a type of mace, and/or pepper spray

and/or O.C. spray, thus causing him injuries.

14. That the plaintiff, **KAVON DURDIN** was taken in police custody, to the 84th Precinct, and thereafter to Central Booking and thereafter saw a judge.

15. That the plaintiff, **KAVON DURDIN** was caused to appear in Court on several court appearances.

16. That all charges against the plaintiff, **KAVON DURDIN** were adjourned in contemplation of dismissal.

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFF
KAVON DURDIN

17. That, the plaintiff, **KAVON DURDIN**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 16 with the same force and effect as if hereinafter more fully set forth at length herein.

18. That, on December 9, 2013, the plaintiff, **KAVON DURDIN**, was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

19. That, the plaintiff, **KAVON DURDIN**, was assaulted/battered without justification and without cause and without excuse.

20. That, the assault/battery took place in front of Room 104 of premises known as "Science Skills Center High School", 49 Flatbush Avenue Extension, Brooklyn, in the County of Kings, City and State of New York, and other locations wherein the plaintiff, **KAVON DURDIN** was held against his will by the defendant

and/or defendants, their agents, servants and/or employees.

21. That, at all times hereinafter mentioned and on December 9, 2013, and for sometime prior thereto, defendant, **NELSON**, was a New York City police officer, and/or agent servant and/or employee of the defendant, **THE CITY**, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

22. That, at all times hereinafter mentioned and on December 9, 2013, and for sometime prior thereto, defendant, **PATRICK**, was a New York City police officer, and/or agent servant and/or employee of the defendant, **THE CITY**, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

23. That, at all times hereinafter mentioned and on December 9, 2013, and for sometime prior thereto, defendant, **BELLARDIO**, was a New York City police officer, and/or agent servant and/or employee of the defendant, **THE CITY**, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

24. That, at all times hereinafter mentioned and on December 9, 2013, and for sometime prior thereto, defendant, **NELSON**, was a New York City police officer, and/or agent servant and/or employee of the defendant, and/or defendants working in the scope and course of his employment as a New York City Police

Officer, and was employed by the defendant, and/or defendants.

25. That, at all times hereinafter mentioned and on December 9, 2013, and for sometime prior thereto, defendant, **PATRICK**, was a New York City police officer, and/or agent servant and/or employee of the defendant, and/or defendants, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, and/or defendants.

26. That, at all times hereinafter mentioned and on December 9, 2013, and for sometime prior thereto, defendant, **BELLARDIO**, was a New York City police officer, and/or agent servant and/or employee of the defendant, and/or defendants, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, and/or defendants.

27. That, the aforementioned assault and battery of the plaintiff, **KAVON DURDIN**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant, **THE CITY**.

28. That, the aforementioned assault and battery of the plaintiff, **KAVON DURDIN**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant, and/or defendants.

29. That, by reason of the foregoing, the plaintiff, **KAVON DURDIN**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

30. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

31. That, by reason of the foregoing, the plaintiff, **KAVON DURDIN**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF PLAINTIFF
KAVON DURDIN

32. That, the plaintiff, **KAVON DURDIN**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 31 with the same force and effect as if hereinafter more fully set forth at length herein.

33. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police

officers, agents, servants and/or other employees of the defendant, **THE CITY**.

34. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, and/or defendants, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, and/or defendants.

35. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

36. That the defendant, and/or defendants, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, and/or defendants.

37. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **NELSON**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or employees of the defendant, **THE CITY**.

38. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **NELSON**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or employees of the defendant, and/or defendants.

39. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **PATRICK**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or employees of the defendant, **THE CITY**.

40. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **PATRICK**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or employees of the defendant, and/or defendants.

41. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **BELLARDIO**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or employees of the defendant, **THE CITY**.

42. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **BELLARDIO**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or employees of the defendant, and/or defendants.

43. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **NELSON**, who was employed by the defendant, **THE CITY**.

44. That, the defendant, and/or defendants, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **NELSON**, who was employed by the defendant, and/or defendants.

45. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **PATRICK**, who was employed by the defendant, **THE CITY**.

46. That, the defendant, and/or defendants, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **PATRICK**, who was employed by the defendant, and/or defendants.

47. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **BELLARDIO**, who was employed by the defendant, **THE CITY**.

48. That, the defendant, and/or defendants, were additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **BELLARDIO**, who was employed by the defendant, and/or defendants.

49. That, by reason of the foregoing, the plaintiff, **KAVON DURDIN**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

50. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

51. That, by reason of the foregoing, the plaintiff, **KAVON DURDIN**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF PLAINTIFF
KAVON DURDIN

52. That the plaintiff, **KAVON DURDIN**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 51 with the same force and effect as if hereinafter more fully set forth at length herein.

53. That, on December 9, 2013, the plaintiff, **KAVON DURDIN**, was caused to be falsely arrested and falsely imprisoned without probable cause.

54. That, the plaintiff, **KAVON DURDIN**, was arrested without an arrest warrant.

55. That, the false arrest/false imprisonment took place in front of Room 104, of "Science Skills Center High School", 49 Flatbush Avenue Extension, Brooklyn, in the County of Kings, City and State of New York, and other locations and wherein the plaintiff, **KAVON DURDIN** was held against his will

by the defendant and/or defendants, their agents, servants and/or employees.

56. That, the aforementioned false arrest and false imprisonment of the plaintiff, **KAVON DURDIN**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

57. That, the aforementioned false arrest and false imprisonment of the plaintiff, **KAVON DURDIN**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants.

58. That, the aforementioned false arrest and false imprisonment of the plaintiff, **KAVON DURDIN**, was carried out by defendant, **NELSON**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant, **THE CITY**.

59. That, the aforementioned false arrest and false imprisonment of the plaintiff, **KAVON DURDIN**, was carried out by defendant, **NELSON**, and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant, and/or defendants.

60. That, the aforementioned false arrest and false imprisonment of the plaintiff, **KAVON DURDIN**, was carried out by

defendant, **PATRICK**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant, **THE CITY**.

61. That, the aforementioned false arrest and false imprisonment of the plaintiff, **KAVON DURDIN**, was carried out by defendant, **PATRICK**, and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant, and/or defendants.

62. That, the aforementioned false arrest and false imprisonment of the plaintiff, **KAVON DURDIN**, was carried out by defendant, **BELLARDIO**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant, **THE CITY**.

63. That, the aforementioned false arrest and false imprisonment of the plaintiff, **KAVON DURDIN**, was carried out by defendant, **BELLARDIO**, and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant, and/or defendants.

64. That, by reason of the foregoing, the plaintiff, **KAVON DURDIN**, was injured; was rendered sick, sore, lame and

disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

65. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

66. That, by reason of the foregoing, the plaintiff, **KAVON DURDIN**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF
KAVON DURDIN

67. The plaintiff, **KAVON DURDIN**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 66, with the same force and effect as if hereinafter more fully set forth at length herein.

68. That the plaintiff, **KAVON DURDIN** did not commit any illegal act, nor did the individually named defendant have reason to believe he committed an unlawful act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, excessive force was used against him;

and deprived his of his constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

69. That at all times hereinafter mentioned, the defendant, **NELSON**, was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

70. That at all times hereinafter mentioned, the defendant, **NELSON**, was employed in his respective capacity by the defendant, and/or defendants and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, and/or defendants

71. That at all times hereinafter mentioned, the defendant, **PATRICK**, was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

72. That at all times hereinafter mentioned, the defendant, **PATRICK**, was employed in his respective capacity by

the defendant, and/or defendants and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, and/or defendants.

73. That at all times hereinafter mentioned, the defendant, **BELLARDIO**, was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

74. That at all times hereinafter mentioned, the defendant, **BELLARDIO**, was employed in his respective capacity by the defendant, and/or defendants and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, and/or defendants.

75. Defendant, **NELSON**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff, **KAVON DURDIN**, or other citizens injured thereby, or to take any disciplinary action whatever

against any of their employees or agents.

76. Defendant, **NELSON**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, and/or defendants has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff, **KAVON DURDIN**, or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

77. Defendant, **PATRICK**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff, **KAVON DURDIN**, or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

78. Defendant, **PATRICK**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendants knew or should have known of the fact that this

pattern of conduct was carried out by their agents, servants and/or employees, the defendant, and/or defendants has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff, **KAVON DURDIN**, or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

79. Defendant, **BELLARDIO**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff, **KAVON DURDIN**, or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

80. Defendant, **BELLARDIO**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, and/or defendants has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff, **KAVON DURDIN**, or other citizens injured thereby, or to take any disciplinary

action whatever against any of their employees or agents.

81. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **KAVON DURDIN** of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York: The right of plaintiff, **KAVON DURDIN** to be secure in his person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **KAVON DURDIN**, to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **KAVON DURDIN**, not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

82. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendant, **NELSON**, while acting under color of state law and within the scope of his employ.

83. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendant, **PATRICK**, while acting under color of state law and within the scope of his employ.

84. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendant, **BELLARDIO**, while acting under color of state law and within the scope of his employ.

85. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting individuals without probable cause.

86. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, and/or defendants' custom and/or policy of arresting individuals without probable cause.

87. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting minorities without probable cause.

88. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, and/or defendants' custom and/or policy of arresting minorities without probable cause.

89. That the deprivation of plaintiff, **KAVON DURDIN** Constitutional Rights was the result of the defendant, **THE CITY's** custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

90. That the deprivation of plaintiff, **KAVON DURDIN**

Constitutional Rights was the result of the defendant, and/or defendants' custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

91. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY**.

92. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, and/or defendants

93. That the detaining of plaintiff, **KAVON DURDIN** without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**.

94. That the detaining of plaintiff, **KAVON DURDIN** without probable cause or justification was the result of customs and/or policies adopted by the defendant, and/or defendants.

95. That the deprivation of plaintiff, **KAVON DURDIN's** Constitutional Rights was the result of the defendant, **NELSON's** arrest of the plaintiff **KAVON DURDIN** without probable cause.

96. That the deprivation of plaintiff, **KAVON DURDIN's** Constitutional Rights was the result of the defendant, **PATRICK's** arrest of the plaintiff **KAVON DURDIN** without probable cause.

97. That the deprivation of plaintiff, **KAVON DURDIN's**

Constitutional Rights was the result of the defendant, **BELLARDIO's** arrest of the plaintiff **KAVON DURDIN** without probable cause.

98. That the deprivation of plaintiff, **KAVON DURDIN's** Constitutional Rights was a result of the defendant, **THE CITY's** custom and policy in failing to discipline officers for the use of excessive force.

99. That the deprivation of plaintiff, **KAVON DURDIN's** Constitutional Rights was a result of the defendant, and/or defendants' custom and policy in failing to discipline officers for the use of excessive force.

100. That the deprivation of plaintiff, **KAVON DURDIN's** Constitutional Rights was the result of **NELSON's** use of excessive force.

101. That the deprivation of plaintiff, **KAVON DURDIN's** Constitutional Rights was the result of **PATRICK's** use of excessive force.

102. That the deprivation of plaintiff, **KAVON DURDIN's** Constitutional Rights was the result of **BELLARDIO's** use of excessive force.

103. That the customs and/or policies adopted by the defendant, **THE CITY** exhibited a deliberate indifference to the Constitutional rights of plaintiff, **KAVON DURDIN**

104. That the customs and/or policies adopted by the defendant, and/or defendants exhibited a deliberate

indifference to the Constitutional rights of plaintiff, **KAVON DURDIN**.

105. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false arrest, false imprisonment, assault and battery, the negligence of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the plaintiff, **KAVON DURDIN** was caused to have his civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

106. That, by reason of the foregoing, the plaintiff **KAVON DURDIN** was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief, his injuries are permanent in nature and effect.

107. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

108. That, by reason of the foregoing, the plaintiff, **KAVON DURDIN**, has sustained damages in an amount in excess of the

jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, plaintiffs, **KAVON DURDIN** demand judgment against the defendants, on the First, Second, Third, Fourth and Fifth causes of action in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York; together with interest, as well as the costs, disbursements and legal fees pursuant to 42 U.S.C. Section 1988, of these causes of action.

Dated: New York, New York
February 27, 2015

Yours, etc.

SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff,
KAVON DURDIN
11 Park Place, 10th Floor
New York, New York 10007
(212) 227-8865

ATTORNEY'S VERIFICATION

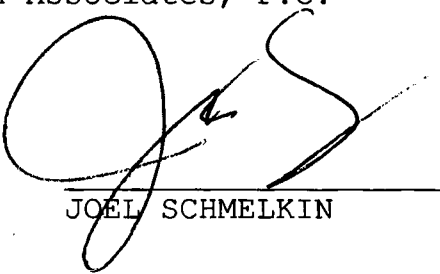
STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

JOEL SCHMELKIN, an attorney admitted to practice law in the State of New York, states, the following:

I am associated with the law firm of Schmelkin Associates, P.C., the attorneys of record for the plaintiffs in the within action. I have read the foregoing **COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe it to be true. This verification is made by me and not by the plaintiffs because the plaintiffs do not reside in the County where Schmelkin Associates, P.C. maintains its office.

The grounds of my belief as to all matters not stated upon my knowledge are conversations with plaintiffs and contents of the file maintained by Schmelkin Associates, P.C.

Dated: New York, New York
February 27, 2015



JOEL SCHMELKIN

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Index No.

Year 20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

KAVON DURDIN,

Plaintiff(s),

-against-

THE CITY OF NEWYORK, P.O. NELSON,
P.O. PATRICK, P.O. BELLARDIO,

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

Office and Post Office Address, Telephone
11 PARK PLACE, 10TH FLOOR
NEW YORK, N.Y. 10007
TEL: (212) 227-8865

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated: February 27, 2015.

Signature

Print Signer's Name JOEL SCHMELKIN, ESQ.

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

☐ that the within is a (certified) true copy of a
NOTICE OF entered in the office of the clerk of the within-named Court on 20
ENTRY

☐ that an Order of which the within is a true copy will be presented for settlement to the
NOTICE OF Hon. , one of the judges of the within-named Court,
SETTLEMENT at
on 20 , at M.

Dated:

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

To:

Office and Post Office Address, Telephone
11 PARK PLACE, 10TH FLOOR
NEW YORK, N.Y. 10007

Attorney(s) for